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Request for Information: Development of an Artificial Intelligence Action Plan

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Comment on FR Doc # 2025-02305

Submitter Information

Name: Anonymous Anonymous

General Comment

See attached file(s)

Attachments

AI Comment

From: Intellectual Property Professional

Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I am an avid visual artist who creates artwork for all kinds of American clients – from personal family portraits, to cover artwork for books. In addition to being an artist, I work in Intellectual Property Law and am familiar with the important protections that copyright affords **human** creators.

The AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy American business and innovation with their recent demand to create special carve outs in copyright law.

AI systems can only be produced by first training on work made by people. **The rights of millions of American people were infringed when their data, their work, and their property were taken and fed into these AI systems without consent or compensation.** They ingest our data, our art, our family photos, reassemble it and then sell it back to clients – directly competing with human artists and cutting them out of the marketplace.

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow "fair use". Their entire profit structure is built upon infringing copyright – they add no transformative value beyond interpolation of what is fed into the machine, and designed exclusively to profit. There is no fair use.

They are asking this administration to compromise rights afforded to humans, to benefit corporations. They seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation.

Instead, it will have the opposite effect. The purpose of American copyright and intellectual property law is to protect the incentive to create and innovate.

If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things?

Want to protect American innovation? Protect American creators. **Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.**

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

- First, the government should ensure that creators and everyday Americans give effective **consent**, so that we can decide when and where our work is used by AI systems.
- Second, the AI Action Plan should encourage a robust **licensing** marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.
- Finally, the AI Action Plan should require **transparency** from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

I am not anti-technology or anti-AI. I am consistently impressed by the capabilities of these AI systems, and believe they have incredibly beneficial applications. But we should not sacrifice the hard work and ingenuity of millions of Americans and give it away for free to Big Tech by rewriting copyright law.

Thank you for the opportunity to comment on these important issues.